

18STCV01407 18STCV01407

County: los-angeles

Division: Civil Law and Motion

Department: 415

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TENTATIVE RULING

DEPARTMENT

415

HEARING DATE

August 11, 2026

CASE NUMBER

18STCV01407

MOTION

Motion to Dismiss

MOVING PARTIES

Defendant City of Los Angeles, joined by Defendants Curtis
Lepore and Rachel Brinck

OPPOSING PARTIES

Plaintiffs David Ortiz and Yuko Ortiz

MOTION

Defendant City of Los Angeles ("Defendant") moves to dismiss the complaint of Plaintiffs David Ortiz and Yuko Ortiz ("Plaintiffs") for delay in prosecution. Plaintiffs oppose the motion.

DISCUSSION

While Defendant refers to the five-year rule in its memorandum of points and authorities, Defendant's notice of motion cites Code of Civil Procedure section 583.130 (section 583.130) as the basis for the relief they seek. The Court cannot grant relief based on authority Defendant fails to cite in the notice of motion, nor can it grant relief on grounds other than those set forth in the notice of motion. (See Code Civ. Proc., § 1010 ["Notices must be in writing, and the notice of a motion, other than for a new trial, must state when, and the grounds upon which it will be made, and the papers, if any, upon which it is to be based"]; Cal. Rules of Court, rule 3.1110(a) ["A notice of motion must state in the opening paragraph the nature of the order being sought and the grounds for issuance of the order"]; *People v. American Surety Insurance Co.* (1999) 75 Cal.App.4th 719, 726 [court concluded notice of motion made no reference to the fact of what the movant sought or the grounds for such relief, as required by rule 311(a) of the California Rules of Court, the predecessor to Rules of Court, rule 3.1110(a)].) The significance of this principle is even more relevant in this instance in which self-represented litigants are involved, and they may specifically rely on the authority advanced in the motion. The Court does not find co-Defendants' joinder in Defendant's motion cured the deficiency.

Accordingly, the Court considers the motion as a motion to dismiss pursuant to section 583.130.

ANALYSIS

Section 583.130 requires a plaintiff to proceed with "reasonable diligence" in prosecuting an action, but "all parties shall cooperate" in bringing the action to trial. "[T]he policy favoring trial or other disposition of an action on the merits are generally to be preferred over the policy that requires dismissal for failure to proceed with reasonable diligence in the prosecution of an

action in construing the provisions of this chapter [Dismissal for Delay in Prosecution].” Therefore, Court must favor the policy of trial on the merits over the policy requiring dismissal for delay in prosecution. (Code Civ. Proc., § 583.130; see *Freedman v. Pacific Gas & Electric Co.* (1987) 196 Cal.App.3d 696, 703 [same].)

Plaintiffs filed their complaint in this matter on October 19, 2018. Including times in which this case was subject to stays, it has been pending for more than seven years and ten months, and Plaintiffs have not yet brought the matter to trial. However, the Court must consider the impact of the COVID-19 pandemic on Plaintiffs’ prosecution of this action. (See California Rules of Court, Emergency Rule No. 10.) In that regard, Los Angeles County Superior Courts were unable to try cases from March 10, 2020 to January 4, 2021. However, it was impossible to conduct jury trials in this Department until May 11, 2021, primarily because this Court could not satisfy the social distancing requirements.

Moreover, under Rules of Court, rule 3.1342(e), this Court must factor in matters including, but not limited to, the parties’ diligence in pursuing and conducting pretrial proceedings, the various extensions of time and other delays attributable to either party, the condition of the Court’s calendar, what best serves the interests of justice, and the apparent uncertainty of whether it was impossible and impractical to proceed to trial because of pending appellate and writ practice and the parties’ lack of clarity concerning if and when the matter was stayed for any reason. The Court is obligated to consider such issues and any other fact or circumstance relevant to a fair determination of the issue before it in light of section 583.130’s general principles and ideals discussed above.

CONCLUSION AND ORDER

Consequently, the Court does not consider Plaintiffs’ failure to bring this matter to trial so unreasonable as to outweigh the policy of conducting a trial on the merits. For that reason, in applying section 583.130, the Court denies the motion.

Defendant is

ordered to provide notice of the Court's ruling and to file proof of service of same.